

U.P. (Panchayat Raj and Local Bodies) Finance Commission (Appointment and Conditions of Service) Rules, 1994

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U.P. (Panchayat Raj and Local Bodies) Finance Commission (Appointment and Conditions of Service) Rules, 1994

UTTAR PRADESH

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U.P. (Panchayat Raj and Local Bodies) Finance Commission (Appointment and Conditions of Service) Rules, 1994

Rule

U-P-PANCHAYAT-RAJ-AND-LOCAL-BODIES-FINANCE-COMMISSION-APPOINTMENT-AND-CONDITIONS-OF-SERVICE-RULES-1994 of 1994

Published on 23 April 1994

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U.P. (Panchayat Raj and Local Bodies) Finance Commission (Appointment and Conditions of Service) Rules, 1994

Published vide Notification No. 2055/33-1-94-125-94, dated 23rd April, 1994 and published in the U.P. Gazette (Extraordinary), dated 23rd April, 1994

In exercise of the powers conferred by Section 32-A of the United Provinces Panchayat Raj Act, 1947 read with the proviso to Article 309 of the Constitution, the Governor is pleased to make the following rules regulating the appointment and conditions of service to the post of Chairman and Members of the Uttar Pradesh (Panchayat Raj and Local Bodies) Finance Commission in Uttar Pradesh :

Chapter I

Preliminary

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh (Panchayat Raj and Local Bodies) Finance Commission (Appointment and Conditions of Service) Rules, 1994.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context,-

(a)

"Appointing Authority" means the Governor;

(b)

"Chairman" means the Chairman of the Commission;

(c)

"Commission" means the Uttar Pradesh (Panchayat Raj and Local Bodies) Finance Commission;

(d)

"Government" means the Government of Uttar Pradesh;

(e)

"Governor" means the Governor of Uttar Pradesh;

(f)

"Member" means a Member of the Commission.

Chapter II

Appointment

3.

Appointment of Chairman and Members.

- The Chairman and two other Members of the Commission shall be appointed by the Governor.

4.

Term of Office.

- The Chairman and Members shall hold office for a period of one year.

5.

Qualification and eligibility.

- A person shall not be qualified for appointment to the post of the Chairman or the Member unless he possesses experience of dealing with public affairs, public policies, public finances and district administration and extensive experience of financial matters relating to Panchayat Raj Institutions or of Local Bodies :

Provided that nothing herein contained shall prevent the Governor to appoint a non-official person as Chairman, who possesses sufficient experience of Panchayat Raj Institutions or Local Bodies and possesses experience of financial matters.

Chapter III

Pay and Allowances

6.

Pay and allowances.

(1)

A person, appointed as Chairman or a Member, as the case may be, if is already in Government service, shall be treated on deputation and shall be paid pay and allowances as admissible to him in his parent department.

(2)

A person retired on attaining the age of superannuation from Government service and appointed as Chairman or a Member, as the case may be, shall have the option to draw his salary and allowances either on the principle of last pay drawn minus the total amount of pension or the salary and allowances as mentioned below minus the total amount of

pension-

(a)

Chairman Rs. 8,000.00 per month and other admissible allowances;

(b)

Member Rs. 7,000.00 per month and other admissible allowances.

(3)

In the case of a non-official person being appointed as Chairman, the pay and allowances of such person shall be as determined by the Government.

(4)

The Chairman and the Members shall have the facility of rent free accommodation and if such accommodation is not available, he shall be entitled to house rent allowance at the rates fixed by the Government from time to time in respect of its Group "A" employees :

Provided that facility of rent free accommodation shall be available till the Chairman or the Member, as the case may be, holds his office as such and he shall be bound to vacate the accommodation within a period of one month on his ceasing to hold such office.

Chapter IV

Miscellaneous

7.

Leave.

- The Chairman and the Members shall be entitled to all such leave, as is admissible to Group 'A' employees of the Government.

8.

Medical facilities.

- The Chairman and the Members shall be entitled to such medical facilities, as are admissible to Group 'A' employees of the Government.

9.

Regulation of other matters.

- In regard to the matters not specifically covered by these rules the Chairman or a Member shall be governed by the rules, regulations and orders for the time being applicable generally to Group 'A' Government servants serving in connection with the affairs of the State.

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